Leave Policy

HELLA India Automotive Pvt. Ltd
Applicability: HIA
Policy Date : 2010/09/01
Revision no : 3
Revision Date : 2021/04/01

Objective(s)

Outline leave entitlements for employees and provide guidelines for utilization of leave

Contents

This policy consists of the following components:

- Paid Leave
- Casual
- Sick Leave
- Maternity Leave
- Paternity Leave
- Leave Without Pay
- Paid Holidays
- Compensatory off

Interpretational Authority in case of requirement

Human Resources Head

Authority in case of deviation/special approval

Managing Director + Country HR Head

1. Paid Leave/Earned Leave

Description

Paid Leave is leave with pay. Paid Leave is intended for rest, recreation, illness& personal reasons. The entire leave quantum is categorized as "Paid Leave".

Applicability

- All employees on rolls of Hella

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Leave Entitlement –

- ***(Chennai & Coimbatore location employees – Please refer additional Document: Leave Policy/Chennai/04 for Leave entitlement)***
- ***(Gurgaon, Gujrat & Dhankot location employees – Please refer additional Document: Leave Policy/Gurgaon & Dhankot /02 for Leave entitlement)***
- ***(Pune location employees – Please refer additional Document: Leave Policy/Pune/02 for Leave entitlement)***

Other guidelines -

- Leaves would be credited to all employees in the beginning of the calendar year, i.e. 1st January. Employees joining in between of the year would get proportionate leave balance for the calendar year.
- New joinees are entitled to avail the leave after completion of probation period.
- Advance leave up to 15 days is allowed in genuine reasons and subject to approval by Functional Head, Country HR Head and MD.
- No employee shall be permitted to avail earned leave for more than 30 days in 1 calendar year (January to December). In certain cases employee can avail earned leaves for more than 30 day in 1 calendar year by taking necessary approval from Reporting Manager and HR
- Intervening holidays or weekly-off days during the leave period will not be counted as leave.
- Leave can be availed for full or half a day and in multiples of the same.
- In case an employee resigns with advance leave claimed to his credit, the same will be deducted during Full and Final Settlement.
- In case an employee, on a business trip/training to overseas location, the period of assignment will be treated as normal service and leaves as applicable in India will be credited to his/her leave balance

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Leave Approval -

- Application for leave shall be routed through HRIS.
- If, leave planned, is more than 3 days, employees should ensure sufficient advance application through HRIS.
- Post facto leave approval should be avoided. However, in genuine cases it is allowed. Such approval should be immediately submitted to HR
- Depending on current workload demands, leave approving authority may decline leave request.

Accumulation of Leave

Maximum Leave accumulation allowed is up to 60 days. Leave balance over and above 60 days will be compulsorily enchased subject to fulfilment of related rules.

Leave Encashment

- Full Leave encashment is possible in following instances:
  - Resignation
  - Retirement
  - Death
  - Total Permanent Disablement

- If an employee is relieved ***after*** 15th day of the month, his leave account will be credited with full month's leave entitlement. Employees relieved ***before*** 15th will not be eligible for any credit for the last month.
- **Limit for Encashment**
  Encashment of leave will be allowed for number of days over and above balance of **30 days**. Minimum balance of 30 days must be maintained after encashment.
- **Salary components for Leave Encashment**
  Basic Only

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- For encashment of earned leaves, concerned employee has to apply in the prescribed format to HR department.
- Leave encashment is allowed only with the salary of July and January every year. Encashment in January will be done on previous year's Basic Salary.

Income Tax

Leave Encashment payment is subject to Income Tax deduction. It will be included in the gross income of respective financial year for purpose of tax calculation.

Cancellation of Leave

Employees can apply through HRIS for cancellation of leave request.

2. Casual Leave

Applicability

- All employees on rolls of Hella, deployed in the state of Tamilnadu, Haryana and Gujrat.

Leave Entitlement -

- ***(Chennai & Coimbatore location employees – Please refer additional Document: Leave Policy/Chennai/04 for Leave entitlement)***
- ***(Gurgaon, Gujrat & Dhankot location employees – Please refer additional Document: Leave Policy/Gurgaon, Gujrat & Dhankot /02 for Leave entitlement)***
- Not applicable at Pune location

Other guidelines -

- CL shall be credited to individual leave account during beginning of the year.
- Casual balance for new joinees shall be credited on prorated basis and they can avail it on monthly prorated basis.

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- An employee is entitled to avail the leave from day one of joining.
- Employees shall not avail casual leave for more than 2 days at a time.
- CL can't be clubbed with paid leave/earned leave or sick leave.

Accumulation of Casual

- Casual Leave can't be carry forward in next year and un-availed casual leave will be lapsed.

Leave Approval -

Application for leave shall be routed through HRIS.

3. Sick Leave

Applicability

- All employees on rolls of Hella deployed in the state of Haryana and Gujrat.

Leave Entitlement -

- ***(Gurgaon, Gujrat & Dhankot location employees – Please refer additional Document: Leave Policy/Gurgaon, Gujrat & Dhankot /02 for Leave entitlement)***

Other guidelines -

- SL shall be credited to individual leave account during beginning of the year.
- Sick Leave balance for new joinees shall be credited on prorated basis and they can avail it on monthly prorated basis.
- An employee is entitled to avail the leave from day one of joining.
- Earned leave can be clubbed with sick leave, if the sick leave balance is exhausted.

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- Sick leave can be allowed in case of sickness only. Employee has to submit fitness certificate issued by competent doctor incase sick leave is more than 2 days.

Accumulation of Casual and Sick Leave

- Sick Leave can be accumulated up to 21 days. Over and above 21 days will be automatically lapsed.

4. Maternity Leave

Applicability

All female employees on the rolls of HIA and not covered under ESIC Act.

Leave Entitlement:

Maternity Leave - Total maternity leave for up to two child birth shall be 26 weeks of which not more than eight weeks shall precede the date of her expected delivery.

Leave for Miscarriage, etc. – In case of miscarriage (refer Maternity Benefit Act 1961, section 3j), a woman shall, on production of such proof as may be prescribed, be entitled to leave, for a period of six weeks immediately following the day of her miscarriage.

Leave for tubectomy operation – In case of tubectomy operation, a woman shall, on production of such proof as may be prescribed, be entitled to paid leave for a period of two weeks immediately following the day of her tubectomy operation.

For illness – In case, of illness arising out of **pregnancy, delivery, premature birth of child, miscarriage, medical termination of pregnancy or tubectomy operation**, an employee shall, on production of such proof as may be prescribed, be entitled, in addition to the period of absence allowed to her, to a paid leave for a maximum period of 30 calendar days limited up to first two instances

Leave Approval -

- Female employees must notify the company well in advance and in writing and produce a medical certificate confirming the pregnancy and detailing the expected date of birth and the date on which maternity leave is to commence.

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Other guidelines -

- Payment of salary during maternity leave is at full pay.
- Any rest day or public holiday that falls during maternity leave is counted as part of the maternity leave and will not give rise to any additional leave or payments.
- This leave is over and above other leave entitlements

All the other rules governing this policy are subject to provisions of Maternity Benefit Act 1961 and subsequent amendments.

5. Paternity Leave

Applicability

- All male employees on rolls of HIA

Entitlement

- Total number of days paternity leave allowed is 5 calendar days

Guidelines

- All male employees (married) on the rolls of HIA are entitled for Paternity Leave
- This benefit is available up to birth of two children
- Paternity Leave can be availed all at one time or at different occasions within a month (30 days) from the date of birth of a child.
- Intimation in writing subject to approval from Reporting Manager shall be forwarded to HR immediately
- This leave is over and above other leave entitlement

6. Leave Without Pay

Applicability

- All employees on rolls of Hella

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HIA does not encourage this practice. Under exceptional circumstances, such as serious illness, the company may authorise such leave only when all other forms of leaves are exhausted.

7. Paid Holidays

Applicability

- All employees on rolls of HIA

Other Guidelines

- All Employees working with HIA are entitled to 11 paid holidays
- The Company has the discretion to designate a holiday as a working day to compensate for working days lost due to natural calamities, civil disturbances and other unforeseen circumstances.
- The leave calendar for every year will be prepared by HR in consultation with the senior management team and will be informed to the employees by November of pervious year.
- Employees will observe holiday calendar of respective location visited during business trip overseas/ other location.

8. Compensatory Off

Applicability

- All employees up to Manager level

Other Guidelines

- Compensatory off shall be granted only for working on **weekly off/paid holidays**, based on minimum of **8 hours** being put in to claim full day compensatory off.
- Compensatory off against less than 8 worked hrs. shall not be accepted.
- Compensatory off for attending training and development program shall not be considered.
- Work hours put in for less than 8 hours on multiple days (e.g. 4 hours on Saturday and 4 hours on Sunday) will not qualify for any cumulative computation.
- This compensatory off has to be availed by concerned employee within 90 days from the day of earning compensatory off or it will lapsed after 90 days.

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- Prior information approved by functional head is required to be submitted with HR before coming on duty during weekly off days/holidays to avail benefits as compensatory off.

- Reimbursement against compensatory off can be allowed as an exception only after the approval of functional head incase reporting manager is not able to grant compensatory off leave to employees. In such case, employees up to Dy. Manager level can only claim for the reimbursement as per below mentioned limits.

Reimbursement Limits (Including Conveyance Charges)

Designation	**Reimbursement Amount**
Assistants/staff/representatives/Asst. Engineers/Asst – Officers/Inspector/Others below officer grade	Rs. 300 per day
Engineer / Officers / Senior Engineers / Senior Officers/Executives/Analyst	Rs. 400 per day
Assistant Managers/Dy. Manager/Specialist/Sr. Specialist/Sr. Analyst	Rs. 500 per day

Revision History

Revision	**Date**	**Author**	**Description of Changes**
1.0			
2.0	01.10.2017		Change in Maternity Leave as per Govt. Notification
3.0	01.04.2021		Common Policy for HIA
4.0			

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